SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 367 of 2021 (YEAR: 2021)

CORAM: NAVIN SINHA, R. SUBHASH REDDY

Sanjeev Chandra Agarwal
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Narcotic Drugs and Psychotropic Substances Act, 1985
Sections:	Section 37 NDPS, Section 27A NDPS

JUDICIAL HEADNOTE & SUMMARY

Analyzed Section 27A NDPS regarding financing illicit drug trafficking, demanding tangible documentary or financial evidence rather than conjecture to invoke severe statutory bars.

RATIO DECIDENDI

The Court held that: Analyzed Section 27A NDPS regarding financing illicit drug trafficking, demanding tangible documentary or financial evidence rather than conjecture to invoke severe statutory bars. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Sanjeev Chandra Agarwal v. Union of India (Criminal Appeal No. 367 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Narcotic Drugs and Psychotropic Substances Act, 1985, particularly Section 37 NDPS, Section 27A NDPS. Analyzed Section 27A NDPS regarding financing illicit drug trafficking, demanding tangible documentary or financial evidence rather than conjecture to invoke severe statutory bars.

OPERATIVE ORDER

ORDER: Decided